

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR JUNE 29, 2026
DEPARTMENT 30
JUDICIAL OFFICER: MARK SCHMUCK

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE TEMPORARY JUDGE

Counsel and parties are encouraged to appear remotely through Zoom videoconferencing, **unless otherwise ordered by the Court.** Department 30 is open for in person appearances.

Please note the following information for your reference:

Zoom videoconferencing for Department 30:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1. 9:00 AM	N26-0520 HEARING ON PETITION FOR NAME CHANGE	IN THE MATTER OF: MELODY SAMPAIO
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Need appearances

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2. N26-0531 IN THE MATTER OF: MARY SMITH

9:00 AM HEARING ON PETITION FOR NAME CHANGE

Petitioner still must do the following:

Appear at the hearing with minor or file her written consent to name change

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3. N26-0543 IN THE MATTER OF: NIADA BESSARD

9:00 AM HEARING ON PETITION FOR NAME CHANGE

Petitioner still must do the following:

1. Appear at the hearing
2. File a Proof of Publication of Order to Show Cause For Change of Name

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4. N26-0544 IN THE MATTER OF: ESTELA LUNA

9:00 AM HEARING ON PETITION FOR NAME CHANGE

Petitioner still must do the following:

1. Appear at the hearing
2. File a Proof of Publication of Order to Show Cause For Change of Name

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- 5.** **MSP19-01066** **CONSERVATORSHIP OF: MARC TAVERNIER**
9:01 AM HEARING IN RE: SECOND ACCOUNT AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR AND ATTORNEY FOR CONSERVATOR FILED ON 02/02/26 BY DELIA FEAGLEY
- Need:
1. Appearances
 2. Verified declaration by attorney to specify the amount of time spent for each category of service provided. CRC §§ 7.702; 7.751(b)
 3. Further support for reimbursement for expenses incurred for ordinary business operations associated with services compensated by professional fees (including copying and postage costs). See Guidelines for Probate Rules - Attachments.
 4. Revised Accounting that complies with PrC § 1060 *et seq.* Accounting should not include transfers between accounts. Schedule of Receipts at p. 109 reflects a “transfer from 00 for Taxes” on 10-31-25 of \$5,100.00
 5. Verified declaration by petitioner to clarify deposit of \$1,000 on 5-21-25 “to cover fees bounced check”
 6. Verified declaration by petitioner to clarify disbursement of \$5,100 on 10-31-2025 “to cover property taxes, bond and home insurance.” No payee is identified and it appears must be itemized.
 7. Verified declaration by petitioner to clarify disbursements for “bounced checks” on 5-16-2025 and 5-20-25
 8. Verified declaration by petitioner to clarify miscellaneous disbursement of \$1,000.00 on 5-21-2025 “to cover fees and bounced payment”
- The Court is waiting for these items:
1. Report of atty. Daniel Vaughan
- Notes:
2. Accounting does not reflect transfers to trust. Petition at page 2, ¶ 3 and ¶ 8 of Decl. of Delia Feagley filed 6-10-26 indicate real property was transferred to trust 2-3-2022.
 3. Decl. of Delia Feagley filed 6-10-2026, includes an amended accounting that extends the account period to 2-28-2026 and requests additional conservator’s fees. Petition states account ends 12-31-2024; accounting attached to Decl. ends 2-28-2026. Declaration must be properly calendared and noticed. PrC § 1202
 4. Statute does not require and court does not want all bank statements. Only provide the statements covering the beginning and ending dates for a 1st account and ending on any subsequent accounts. Please do not submit any others. PrC § 2620(c)(2)
 5. Font size must not be smaller than 12 points. CRC 2.104

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6A. **P24-00196** **CONSERVATORSHIP OF: AMPARO MCFARLAND**
9:01 AM HEARING IN RE: PETITION FOR TRANSFER ORDERS FILED ON 07/10/24 BY CRISTINA AVILA MARCUS -
STATUS OF TRANSFER TO PERU

Need:

1. Appearances to report status of transfer to Peru
2. Final Order Confirming Transfer Judicial Council Form GC-365

Notes:

- a. Letters of Conservatorship of Person/Estate issued to Cristina Avila Marcus 4-10-2024.
- b. Provisional Order for Transfer filed 10/30/2024.
- c. First Account Current and Report of Conservator filed by Cristina Avila Marcus 6-3-2026, is set for hearing 8-24-2026.

6B. **P24-00196** **CONSERVATORSHIP OF: AMPARO MCFARLAND**
9:01 AM HEARING IN RE: PETITION FOR SUBSTITUTED JUDGMENT TO CREATE A TRUST FOR CONSERVATEE
FILED BY CRISTINA AVILA ON 07/28/2025 ** STATUS**

Need:

1. Appearances
2. Verified declaration of Petitioner to include a copy of the proposed trust document
3. Proposed Order

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8. **P24-02053** **CONSERVATORSHIP OF: JOHN W. VEIRS**
9:01 AM HEARING IN RE: STATUS OF ~~LIMITED~~ CONSERVATORSHIP

Drop.

Notes:

1. Letters of Conservatorship of Person/Estate issued to Russell Veirs and Randall Veirs 3-21-2025.
2. First Account and Report of Conservators filed 5-18-2026, is set for hearing 7-31-2026.

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9. **P25-01991** **CONSERVATORSHIP OF: WAYNE N PHILLIPS, SR.**
9:01 AM HEARING IN RE: PETITION FOR APPOINTMENT OF CONSERVATOR OF THE PERSON AND ESTATE FILED
BY WAYNE PHILLIPS JR ON 11/06/2025

Need:

1. Appearances
2. Verified declaration by petitioner to add self to the list at Petition item 11
3. Proof of mailing to Veterans Administration and Director of State Hospitals
4. Verified declaration with attachment GC-313
5. Confidential Capacity Assessment and Declaration (Judicial Council Form GC-335) to show whether proposed conservatee lacks capacity to give informed medical consent. PrC § 1890
6. PrC § 2590 powers listed specifically in petition with need for each power stated. LR 7.427
7. Proof of mailing Notice of Hearing with PrC § 2590 powers specifically listed. PrC § 2592(b)
8. Order Appointing Probate Conservator Form GC-340 (adopted 1-15-16)

The Court is waiting for these items:

- A. Appearance by proposed conservatee or waiver by counsel
- B. Report of atty. Mona Nia, guardian *ad litem* for conservatee

Note: Letters of Temporary Conservatorship of Person and Estate issued to Wayne Phillips Jr. expire 08/05/2026.

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10.

9:01 AM

P26-00119

LIMITED CONSERVATORSHIP OF: JAIME ESGUERRA

HEARING IN RE: PETITION FOR APPOINTMENT OF CONSERVATOR OF THE PERSON FILED ON 01/21/26
BY JULIE ESGUERRA

Need appearances

The Court is waiting for these items:

1. Report of atty. Michael Pierson

Note: Letters of Limited Conservatorship issued to parents 6-5-1986. Reportedly, both parents are now deceased.

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11.

9:05 AM

P26-00873

ESTATE OF: OLLIE STEWART

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 5/13/26 BY
BENJAMIN R. STEWART III

Petitioner, spouse, still must do the following:

1. Appear at the hearing
2. File Proof of Publication. PrC § 8120
3. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 8100; LR 7.151(e)
4. File a verified declaration by petitioner to address petition Item # 5.a.(3) or 5.a.(4) (whether decedent is survived by a registered domestic partner)
5. File a verified declaration by petitioner to address petition Item # 5.a.(7) or 5.a.(8) (whether decedent is survived by issue of a predeceased child)
6. File a verified declaration by petitioner to address petition Item #5b. (whether decedent was survived by a stepchild or foster child or children who would have been adopted, but for a legal barrier)
7. File a verified declaration to clarify Item # 2.a. Petition requests admission of will; however, Item # 3f.1. states decedent died intestate. Item # 3.f.2 indicates a copy of decedent's will is attached to petition; no will is attached.
8. Submit Order for Probate Form DE-140

Note: If granted, bond will be fixed at \$540,000.00.

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12.

9:05 AM

P26-00917

ESTATE OF: DONALD SKILLION

HEARING IN RE: PETITION FOR SPOUSAL PROPERTY FILED ON 05/15/26 BY KATHLEEN SKILLION

Need:

1. Verified declaration by petitioner to address petition Item # 5.a.(2) (whether decedent is survived by issue of a predeceased child)
2. Verified declaration by petitioner to include Attachment 7, facts upon which the petitioner bases the allegation that the property described should pass to surviving spouse, including date and length of marriage and whether spouses were legally separated or living apart
3. Revised Spousal or Domestic Partner Property Order Form DE-226 to include percentage to be passed and transferred in Attachments 5a and 7a. The court can only confirm $\frac{1}{2}$ interest in community property as belonging to the surviving spouse and determine $\frac{1}{2}$ interest as passing to the surviving spouse.

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13.

9:05 AM

P26-00919

ESTATE OF: EDMOND LEW

HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH IAEA FILED ON 05/15/26 BY DE
MIN LIU

Need:

1. Proof of Publication. PrC § 8120
2. Verified declaration by petitioner to include names and dates of death of
decedent's parents. LR 7.151(d)

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14.

9:05 AM

P26-00928

ESTATE OF: GEORGE THOMPSON

HEARING IN RE: PETITION CONTESTING TRUST, GRANT DEED & RELATED TRANSFERS FILED BY JOHN MCKINNY & SHARON BALITON ON 5-20-26 *INITIAL PETITION FILED

Petitioners, issue of decedent, still must do the following:

1. Appear at the hearing
2. File a verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
3. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court.
4. File evidence of written demand for accounting as required by PrC §4541
5. Submit a proposed Order

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15.

9:30 AM

P24-02305

GUARDIANSHIP OF: KAILEE SIMMONS

HEARING IN RE: GUARDIANSHIP OF MINOR FILED BY CORDELIA BOYKIN ON 12/30/24 - RETURN FROM MEDIATION

Petitioner, maternal grandmother, still must do the following:

1. Appear at the hearing to report status, pursuant to 4-8-2026 minute order
2. File a verified declaration showing diligent efforts made to identify, locate and serve maternal grandfather. CRC 7.52
3. Do one or the other, but not both: (1) Have a copy of the Notice of Hearing and Petition Form GC-210 served by mail on maternal grandfather and file Proof of Service or have each person sign a consent and waiver form (GC-211); OR (2) If a person cannot be found, submit a declaration (GC-02) explaining what efforts have been made to find that person. CRC 7.52

The Court is waiting for these items:

1. Report of atty. Lita Pettus-Dotson
2. Appearance by Delishia Simmons, pursuant to 4-8-2026 minute order

Notes:

- a. Letters of Temporary Guardianship of Person issued to Cordelia Boykin were suspended at the 05/21/25 hearing.
- b. Service on the father is dispensed with due to his appearance at the 01/29/25 hearing.

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16A. **P26-00698** **GUARDIANSHIP OF: JOSE ORTIZ AXUP**
9:30 AM HEARING IN RE: PETITION FOR APPOINTMENT OF GUARDIAN OF THE PERSON FILED ON 04/13/26 BY
JOSE DANIEL ORTIZ AXUP

Need appearances in person, not via Zoom

Note: Spanish Interpreter is requested.

16B. **P26-00698** **GUARDIANSHIP OF: JOSE ORTIZ AXUP**
9:30 AM HEARING IN RE: PETITION FOR SIJF FILED ON 04/13/26 BY JOSE DANIEL ORTIZ AXUP

Need appearances in person, not via Zoom

Superseded by Line 16C.

16C. **P26-00698** **GUARDIANSHIP OF: JOSE ORTIZ AXUP**
9:30 AM HEARING IN RE: AMENDED PETITION FOR SIJF FILED ON 06/08/26 BY JOSE DANIEL ORTIZ AXUP

Need appearances in person, not via Zoom

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18. 9:30 AM	MSP18-01804 GUARDIANSHIP OF: ADDISON DANIEL HEARING IN RE: STATUS OF FILING PETITION TO TERMINATE GUARDIANSHIP AFTER PETITION TO FIX RESIDENCE OUTSIDE CA GRANTED 1/12/26 Need appearances to report status of establishing guardianship in State of Michigan, pursuant to 4-15-2026 minute order The Court is waiting for these items: Report of atty. Oliver Greenwood Notes: 1. Letters of Guardianship issued to paternal grandparents Dean H. Daniel and Diane Smrkovsky 10-23-2019. 2. Order Fixing Residence Outside the State of California filed 1-15-2026.
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19.

9:30 AM

P25-00948

GUARDIANSHIP OF: TILDYN ANDREWS

HEARING IN RE: PROOF OF FUNDS PLACED IN BLOCKED ACCOUNT - STATUS OF FIDELITY INVESTMENTS

Need:

1. Appearance to report status of depositing minor's funds into a blocked account
2. Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account Form MC-356 filed as to Fidelity account

Notes:

1. Letters of Guardianship of Estate issued to mother, Amanda Turner 9-29-2025.
2. Decl. filed 2-27-2026 re: status of funds in accounts.
3. Acknowledgment of Receipt of Order filed 2-27-2026, as to funds held by Wells Fargo only.

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20A.

10:30 AM

P23-01452

GUARDIANSHIP OF: ROBERT PFLUEGER, II

HEARING IN RE: PETITION FOR APPOINTMENT OF GUARDIAN (PERSON) FILED BY PILAR PFLUEGER ON 08/17/23 - STATUS REVIEW

Petitioner, stepmother, still must do the following:

1. Appear at the hearing in person, not via Zoom
2. Do one or the other, but not both: (1) Have a copy of the Notice of Hearing, Petition Form GC-210 and Order Appointing Temporary Guardian personally served on mother and file Proof of Service or have her sign a consent and waiver form (GC-211); OR (2) if she cannot be found, submit a declaration (GC-02) explaining what efforts have been made to find her. CRC 7.52
3. Have a copy of the Petition and Notice of Hearing mailed to the California Department of Social Services, 744 P Street MS 3-34, Sacramento, CA 95814, and file the proof of mailing (non-relative) PrCS 1542

The Court is waiting for these items:

Report of atty. Lita Pettus-Dotson

Notes:

- a. Letters of Temporary Guardianship of Person issued to petitioner were suspended pursuant to an ex parte order filed 10/30/2025.
- b. Objection filed by father Robert Pflueger 09/13/2023.
- c. Court dispensed with further formal service on father who appeared 09/15/2023.
- d. Court will dispense with further formal service on unknown, maternal grandparents, pursuant to Decl. filed 09/13/2023.
- e. Court dispensed with further formal service on paternal grandmother who appeared 12/22/2023.
- f. Order After Hearing held 9-19-2025 filed 9-22-2025.
- g. Per 11-14-2025 minute order, court suspended temporary guardianship.

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20B.

10:30 AM

P23-01452

GUARDIANSHIP OF: ROBERT PFLUEGER, II

HEARING IN RE: PETITION FOR TERMINATION OF GUARDIANSHIP FILED BY ROBERT PFLUEGER ON 11/03/2025

Petitioner, father, still must do the following:

Appear at the hearing

The Court is waiting for these items:

Report of atty. Lita Pettus-Dotson

Notes:

- a. No temporary or general orders are currently in place.
- b. Letters of Temporary Guardianship issued to Pilar C. Pflueger were suspended, per 11-14-2025 minute order.